

October 4, 2012



U.S. Department
of Transportation

East Building, PHH-30
1200 New Jersey Avenue S.E.
Washington, D.C. 20590

**Pipeline and Hazardous
Materials Safety Administration**

DOT-SP 3549
(SEVENTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the transportation in commerce of limited quantities of certain "forbidden" dry explosive materials classed as Division 1.1, in the special packaging prescribed herein. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein. The most recent revision supersedes all previous revisions.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.101, Column 3, 173.21(a) and 173.54(j) in that the explosive substances covered in this special permit, when shipped without a wetting or desensitizing agent, are "forbidden", except as specified herein; §§ 173.56(b) and 173.57(a) in that the explosive substances covered in this special permit are required to be approved and tested in accordance with the UN explosive tests to determine if these substances are "forbidden", except as specified herein.

5. BASIS: This special permit is based on the application of Sandia National Laboratories dated May 16, 2012 submitted in accordance with § 107.105, and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Substances, explosive, n.o.s. (Cyclotetramethylene tetranitramine-dry); OR Waste Substances, explosive, n.o.s. (Cyclotetramethylene tetranitramine-dry), contaminated gloves, rags, wipes, sawdust or similar inert material.	1.1D	UN0475	II
Substances, explosive, n.o.s. (Cyclotrimethylenetrinitramine-dry); OR Waste Substances, explosive, n.o.s. (Cyclotrimethylenetrinitramine-dry), contaminated gloves, rags, wipes, sawdust or similar inert material.	1.1D	UN0475	II
Substances, explosive, n.o.s. (Pentaerythrite tetranitrate-dry); OR Waste Substances, explosive, n.o.s. (Pentaerythrite tetranitrate- dry), contaminated gloves, rags, wipes, sawdust or similar inert material.	1.1A	UN0473	II

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Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Substances, explosive, n.o.s. (2,4,6,8,10,12-hexanitro-hexaaza-isowurtzitane a.k.a. "CL-20"); OR Waste Substances, explosive, n.o.s. (2,4,6,8,10,12-hexanitro-hexaaza-isowurtzitane a.k.a "CL-20"), contaminated gloves, rags, wipes, sawdust or similar inert material.	1.1A	UN0473	II
Substances, explosive, n.o.s. (Pentamine [5-cyano-2H-tetra-zolato-N2] cobalt [III] perchlorate); OR Waste Substances, explosive, n.o.s. (Pentamine [5-cyano-2H-tetra-zolato-N2] cobalt [III] perchlorate), contaminated gloves, rags, wipes, sawdust or similar inert material.	1.1A	UN0473	II

7. SAFETY CONTROL MEASURES:

The following packaging method is assigned:

Inner Packaging: Bags, static-shielding plastic, not less than 0.004 inches thick, double-sealed with a metal strip tie and waterproof plastic tape, each containing not more than 250 grams (0.55 pounds) net weight of any "forbidden" dry explosive substance, except for "CL-20", which shall be limited to 225 grams per bag. A desiccant container and a moisture indicator may be included inside the bag with the dry explosive substance.

1st Intermediate Packaging:	Bag, plastic not less than 0.0085 inches thick, sealed with a metal strip tie and waterproof plastic tape; or container, plastic, not less than 0.033 inches thick with a threaded plastic cap sealed with waterproof plastic tape, each containing one inner packaging.
2nd Intermediate Packaging:	Drum, coated or plastic-lined steel with sealing lid, each containing one "1st intermediate packaging" with the void space in the drum filled with water or a non-freezing water-alcohol mixture so that the drum is not completely liquid full at a temperature of 55 degrees Centigrade (131 degrees Fahrenheit) or less.
3rd Intermediate Packaging:	Drum, steel with sealing lid, each containing one "2nd intermediate packaging" which is sufficiently cushioned with foamed plastic padding or sheeting to prevent movement during transport.
Outer Packaging:	Specification 4D plywood box, each containing one "3rd intermediate packaging" and sufficiently cushioned with non-combustible cushioning material to prevent movement during transport.

8. SPECIAL PROVISIONS:

- a. This special permit is only authorized for US Government purposes.
- b. The outer packaging must be legibly and durably marked with the special permit number, "DOT-SP 3549".

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, and Department of Energy contract cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle and Department of Energy contract cargo aircraft only. The shipper must furnish a current copy of this special permit to the air carrier before or at the time the shipment is tendered.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq.
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8 who performs a function subject to this special permit must receive training on the requirements and conditions of the special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR 171.15 Immediate notice of certain hazardous materials incidents, and 171.16 Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving explosion, fire or damages resulting from a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Dr. Magdy El-Sibaie
Associate Administrator for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: scw